Kodu Singh And Ors. vs State Of U.P. on 19 September, 2003

Equivalent citations: 2004CRILJ1348

Author: U.S. Tripathi

Bench: U.S. Tripathi

JUDGMENT

U.S. Tripathi, J.

1. This appeal has been directed against the judgment and order dated 21-4-1981 passed by Ist Additional Sessions Judge, Banda in Sessions Trial No. 115 of 1980 convicting appellants Kodu Singh (since dead), Ranjeet Singh and Jagjeet Singh (since dead) under Section 148 IPC and 302 read with 149 IPC and sentencing each of them to undergo R. I. for a period of one year under Section 148 IPC and imprisonment for life under Sections 302 read with 149 IPC, convicting appellant Chhatra Pal singh, (since dead) under Section 148 IPC and sentencing him to undergo R. I. for a period of one year and convicting appellants Bhabhuti Singh, Vijai Raj Singh, Raghuraj Singh (since dead), Maidan Singh, Turti Singh @ Narvada Singh and Genda Singh (since dead) under Sections 147 IPC and 325 read with 149 IPC and sentencing each of them to undergo R. I. for a period of six months under Section 147 I. P. C. and R. I. for a period 21/2 years under Sections 325/149 I. P. C. All the sentences were ordered to run concurrently.

2. The prosecution story, briefly stated, was as under :--

> Appellants Kodu Singh, Chhatra Pal singh, Raghuraj Singh and Genda Singh were cousin brothers as Gaya Prasad, father of Kodu Singh, Chandrabhan Singh, father of Chhatra Pal Singh and Raghuraj Singh and Kallu Singh, father of Genda Singh were real brothers. Appellants Ranjeet Singh, Jagjeet Singh and Bhabhuti Singh were sons of Kodu Singh. Appellants Madan Singh and Narvada Singh @ Turti Singh were real brothers. All the above appellants and Vijai Raj Singh belonged to the same family.
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> Kodu Singh had taken forcible possession over land of Chhitu Prasad deceased, which was in front of his house and had constructed boundary walls over it. Chhitu Prasad deceased had filed a civil suit against Kodu Singh. The above suit was decreed in favour of Chhitu Prasad on 30-09-1978.
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> On the evening of 20-11-1978 at about 4 p.m. Chhitu Prasad deceased was demolishing the unauthorized wall constructed by Kodu Singh by a Fawara. He has kept his licensed gun with bandolier of cartridges near the wall. Dev Narain (P. W. 1),

son of Chhitu Prasad deceased, was grazing his buffalo towards west of above disputed land. In the meantime, Kodu Singh armed with Farsa, Ranjeet Singh armed with spear, Jagjeet Singh armed with Farsa, Bhabhuti Singh and Vijai Raj Singh armed with lathis emerged out from the house of Kodu Singh and came to the spot. Bhabhuti Singh picked up the gun of Chhitu Prasad deceased. Kodu Singh exhorted to kill Chhitu Prasad. Hearing his exhortation, Chhitu Prasad ran towards his house with Fawara. When he reached at the back of house of Dashrath Gadariya, appellants Chhatra Pal Singh, Maidan Singh, Narvada Singh and Genda Singh all armed with lathis also came there and all the appellants surrounded Chhitu Prasad deceased and started inflicting injuries on him with their respective weapons. On the alarm raised by Chhitu Prasad, Dev Narain (P. W. 1) rushed to save him and appellants Raghuraj Singh and Genda Singh inflicted lathi blows on him. On the alarm of Dev Narain (P.W. 1), Brij Kishore (P.W.2) and Nand Lal (P. W. 3) also came there and they challenged the appellants. The appellants thereafter ran away. When Dev Narain (P.W. 1) and others went to the deceased, they found him dead.

3. Dev Narain (P. W.1) started for police station Rajapur and in the way at Veermau he took Chaukidar and came to police station, where he lodged oral report at 9.10 p.m. Chik, F. I. R. (Ex. Ka-1) was prepared by Head Constable Ram Ujagar Yadav (P. W. 4), who made an endorsement of the same at G. D. report (Ex. Ka-2) and registered a case against all the appellants under Sections 147, 148, 149, 302 and 379 IPC.

4. Investigation of the case was taken up by Sri Radhey Shyam Saraswat (P. W. 6), who interrogated Dev Narain (P. W. 1) at the police station and thereafter came to the spot on 21-11-1978 where he conducted inquest of the dead body of the deceased and prepared inquest report (Ex. Ka-8) and other relevant papers. He sealed the dead body and sent it for post mortem. The I. O. inspected place of occurrence and prepared site plan (Ex. Ka-10). The I. O. also took into possession blood stained and simple earth from the spot and prepared recovery memo. He interrogated other witnesses.

5. Autopsy on the dead body of Chhitu Prasad deceased was conducted on 22-11-1978 by Dr. R. N. Gupta (P. W. 5), who found incised wounds, punctured wounds and contusions as ante mortem injuries and cause of death due to coma on account of ante mortem injuries on head.

6. Injuries of Dev Narain (P. W.1) were examined on 23-11-1978 by Dr. A. K. Saxena, who found contusions and abrasions on his person and prepared injury report (Ex. Ka-13).

7. The I. O. interrogated other witnesses and on completion of investigation submitted charge sheet.

8. Cognizance of the case was taken by the Magistrate, who committed the case to the Court of Sessions.

9. Appellants Kodu Singh, Ranjeet Singh, Jagjeet Singh and Chhatra Pal Singh were charged with the offences punishable under Sections 147, 148 and 302 read with 149 IPC, while appellants

Bhabhuti Singh, Vijai Raj Singh, Raghuraj Singh, Maidan Singh, Turti @ Narvada Singh and Genda Singh were charged with the offences punishable under Section 147 IPC and 302 read with 149 IPC. The appellants pleaded not guilty and contended that they were falsely implicated on account of enmity. Appellant Kodu Singh further contended that his house was constructed by his ancestors and boundary wall in his sahan was constructed 16 years ago. In the year 1975 the boundary wall had fallen due to rain and he had repaired it near Dewali festival. On the date of occurrence, Dev Narain (P. W.1) was demolishing his wall by Fawara and Chhitu Prasad was present there with his licensed gun and bandolier of cartridges. His sons Ranjeet Singh and Jagjeet Singh appellants objected Dev Narain from demolishing their wall. On it, Chhitu Prasad fired on him (Kodu Singh). He bent down and escaped injury. Chhitu Prasad started reloading his gun. Apprehending danger to his life, Kodu Singh inflicted injuries on him and when Dev Narain rushed, he also sustained lathi injuries. He was in possession over the land over which boundary wall was existing and it was part of plot No. 3115 and not plot No. 3114. Appellant Ranjeet Singh contended that Dev Narain (P. W.1) attacked on him with lathi and he caused injuries on him in his self defence, he also adopted statement of his father Kodu Singh. Jageet Singh adopted statement of his father Kodu singh. The other appellant contended that they were falsely implicated on account of enmity.

10. The prosecution in support of its case examined Dev Narain (P. W. 1), Brij Kishore (P. W.2) and Nand Lal (P. W. 3) as witnesses of fact, besides Head constable Ram Ujagar Yadav (P. W.4), Dr. R. N. Gupta (P. W. 5), Radhey Shyam Saraswat, I. O. (P. W. 6) and Dr. A. K. Saxena (P. W. 7). The appellants examined Daddu Singh (D. W. 1) in their defence.

11. The learned Sessions Judge on considering the evidence of the prosecution held that all the appellants were members of unlawful assembly, but the object of the members of unlawful assembly was not to murder Chhitu Prasad, but Kodu Singh, Jagjeet Singh and Ranjeet Singh knowingly caused injuries on Chhitu Singh, which were sufficient in ordinary course of nature to cause his death. That other appellants Vijai Raj Singh, Raghuraj Singh, Maidan Singh, Narvada Singh and Genda Singh can be held responsible for causing grievous injuries to Chhitu Prasad deceased. With these findings, he convicted appellants Kodu Singh, Ranjeet Singh and Jagjeet Singh under Section 148 I. P. C. and 302 read with 149 I. P. C. and sentenced each of them to undergo imprisonment for life and R. I. for one year on each count respectively. He further convicted appellant Chhatra Pal Singh under Section 148 I. P. C. and sentenced him to undergo R. I. for a period of one year and convicted appellants Bhabhuti Singh, Vijai Raj Singh, Raghuraj Singh, Maidan Singh, Turti Singh @ Narvada Singh and Genda Singh under Sections 147 and 325 read with 149 I. P. C. and sentenced on each count respectively.

12. Aggrieved with their above conviction and sentence, the appellants have come up in this appeal.

13. Appellant Kodu Singh, Jagjeet Singh, Chhatra Singh, Raghuraj Singh and Genda Singh died during pendency of the appeal. Therefore, appeal preferred by above appellants stood abated, vide order dated 9-7-2003. The appeal preferred by appellants Ranjeet Singh, Bhabhuti Singh, Vijai Raj Singh, Maidan Singh and Turti Singh @ Narvada Singh only remained for consideration.

14. We have heard Sri R. B. Singh, learned counsel for the appellants and Sri A. K. Jain, learned A. G. A. for the respondents and have perused the evidence on record.

15. The appellants have not disputed injuries on the person of the deceased and his death on account of above injuries as well as injuries on the person of Dev Narain (P. W. 1). Dr. R. N. Gupta (P. W.5), who conducted autopsy on the dead body of Chhitu Prasad deceased stated that he found following ante mortem injuries on his person :--

> 1. Two incised wounds in an area of 15 cm x 12 m on the top of head and on the right side one of the size of 4.5 cm x 1 cm. and the other 5 cm x 1.5 cm. Both cavity deep and situate at a distance of 5 cm from each other. Wounds were lying obliquely. Underlying bone and nasal bone were cut. Brain matter was coming out.
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> 2. 3 punctured wounds in an area of 11 cm x 7 cm on the right side of head and on the temporal area 1.5 cm x 5 cm x cavity deep and 2 cm x 0.6 cm x cavity deep. Underlying bone was cut.
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> 3. Contusion 10 cm x 3 cm on lateral side of right fore arm in the middle underlying bone was fractured.
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> 4. Contusion 8 cm x 6 cm on the back of right palm.
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> 5. Two contusions in an area of 13 cm x 8 cm on the front side of chest outer and lower part measuring 10 cm x 4 cm and 8 cm x 2 cm oblique and parallel to each other.
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> 6. Contusion 6 cm x 2.5 cm on upper one third of right thigh, oblique,

16. The doctor further stated that internal examination showed that frontal and right parietal bones were out under injuries Nos. 1 and 2. There was congestion between scalp and vault Brain was cut and congested and membrances were cut and clotted blood present. Both anterior fossa bones were cut. Cause of death was coma on account of ante mortem head injuries.

17. The above medical evidence has not been challenged and injuries of deceased are admitted. Therefore, the prosecution has established the death and cause of death of Chhitu Prasad deceased.

18. Dr. A. K. Saxena (P.W. 7) stated that he examined Dev Narain (P.W. 1) on 23-11-1978 at 4.15 p.m. and found following injuries on his person:--

> 1. One contusion 4 cm x 2 cm on the outer aspect of left upper arm, 10 cm below from the shoulder top. Colour of the contusion was brownish.
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> 2. Multiple line of abrasion in an area of 5 cm x 2 cm on the back of right fore arm, 12 cm below from back of elbow.

19. He further stated that injury No. 1 was caused by a blunt object, simple in nature and injury No. 2 was caused by friction and was simple in nature. The duration of injuries was about 4 days.

20. However, it was contended by the learned counsel for the appellants that injuries on Dev Narain (P.W. 1) were examined on 3rd day of the occurrence and not on the date of occurrence, while he had gone to police station on same and it appears that injuries were subsequently manufactured. Head Constable Ram Ujagar Yadav (P.W. 4) has stated that on the date of occurrence after lodging report he asked Dev Narain (P.W. 1) to go to hospital but he stated that he had to perform funeral ceremony of his father and therefore, he was not sent to hospital and he was sent to hospital on 23-11-1978, The above explanation appears convincing specially when Kodu Singh and Ranjeet Singh have admitted in their statements under Section 313, Cr. P. C. that injuries on the person of Dev Narain (P.W. 1) were caused in self defence. Therefore, injuries on the person of Dev Narain (P.W. 1) are also admitted and late examination of his injuries does not affect the prosecution case and as it is admitted that he sustained injuries in the same transaction.

21. Kodu Singh, Ranjeet Singh and Jagjeet Singh had been convicted under Sections 302 read with 149, I.P.C. and 148, I.P.C. Kodu Singh and Jagjeet Singh have died and the appeal preferred by them has abated. Therefore, first of all we have to consider appeal preferred by Ranjeet Singh regarding his conviction and sentence under Sections 302 read with 149, I.P.C.

22. The learned counsel for the appellants contended that the trial Court has held that the object of the members of unlawful assembly was not to murder Chhitu Prasad, but appellant Ranjeet Singh, Kodu Singh and Jagjeet Singh convicted under Sections 302 read with 149, I.P.C. and if the common object of unlawful assembly was not to commit murder of Chhitu Prasad, they could not be convicted with the aid of Section 149 and at the best they could be convicted for their individual's role. But since there was no specific charge under Section 302, I.P.C. simpliciter against them, they could not be convicted and sentenced under Section 302 read with Section 149, I.P.C.

23. He further contended that the appellants had acted in exercise of right of private defence and therefore no offence was made against them.

24. It is true that the trial Court held that the common object of members of unlawful assembly was not to murder Chhitu Prasad, but the trial Court had further observed that Kodu Singh, Jagjeet Singh and Ranjeet Singh were inimical and they knowingly caused injuries on Chhitu Prasad, which were sufficient in the ordinary course of nature to cause his death and therefore they are guilty under Sections 148 and 302 read with 149, I.P.C. It is settled that object of individual members of unlawful assembly may develop on the spot even if they had no specific common object from the beginning and in such case the individual intention and knowledge of the particular accused can be taken into consideration while recording conviction. Moreover, if the finding of trial Court is erroneous on the above point, it will not help the appellants specially when they are convicted with the aid of Section 149, I.P.C. In such circumstances, we have to consider whether the common object of Kodu Singh, Ranjeet Singh and Jagjeet Singh was to commit murder of deceased or not as the other appellants were convicted only under Section 325/149, I.P.C. and the State has not preferred any appeal against their acquittal under Section 302/ 149, I.P.C.

25. Before entering into the above question, we would like to refer that the factum of incident and injuries on deceased and Dev Narain (P.W. 1) is admitted to appellants Kodu Singh, Jagjeet Singh and Ranjeet Singh and these persons have set up a plea of self-defence. Kodu Singh had taken a plea in his statement under Section 313, Cr. P. C. that the disputed land belonged to him and he was in possession over it since long. On the date of occurrence Dev Narain (P.W. 1) was demolishing their boundary wall and Chhitu Prasad was standing there with his gun. When Ranjeet Singh and Jagjeet Singh objected Dev Narain (P.W. 1) from demolishing wall Chhitu Prasad fired on Kodu Singh, but he escaped injuries by leaning down. When Chhitu Prasad started reloading his gun, apprehending dangers to their lives, they acted in self-defence. Therefore, it is to be considered whether the above appellants had got right to act in self-defence.

26. The case of the prosecution was that the land over which disputed wall existed was owned by Chhitu Prasad and Kodu Singh and others had forcibly constructed wall over it. Chhitu Prasad had filed a civil suit, which was decreed in his favour on 30-9-1978 i.e. prior to the occurrence of this case. It was argued by the learned counsel for the appellants that admittedly Chhitu Prasad had not filed any execution of the above decree and possession was not delivered to him through Court and therefore the above appellants had right to protect their boundary wall. The copy of judgment of original suit No. 14 of 1976 Chhitu Prasad v. Kodu Singh decided on 30-9-1978 by Munsif, Karvi (Ext. Ka-17) shows that above suit was decreed ex parte with the direction that the defendant (Kodu Singh) shall not make any construction or interfere in any way with plaintiffs (Chhitu Prasad) possession over plot No. 3114 in dispute. However, Kodu Singh has contended that the disputed wall was not lying in plot No. 3114, but was lying in plot No. 3115. But there is no evidence and no survey report. The decree of trial Court in above noted suit shows that the disputed land was lying in plot No. 3114. Though Kodu Singh had filed written statement in the said suit pleading that disputed 'Hara' was not lying in plot No. 3114, but he had not led any evidence in support of his above plea and the suit of Chhitu Prasad was decreed ex parte. Therefore, it was held by Civil Court that disputed wall was constructed in plot No. 3114. The decree, therefore, was binding on Kodu Singh unless it was set aside. Thus, the ownership of the disputed land was decided by competent Court in favour of Chhitu Prasad deceased and Kodu Singh could not challenge the above findings of Civil Court in this case. It further shows that Kodu Singh was not owner of disputed land and in case he constructed boundary wall, he had trespassed over the said plot.

27. The Apex Court held in the case of Jassa Singh v. State of Haryana, 2002 AIR SCW 80 : (2002 Cri LJ 563 : AIR 2002 SC 520) (Para 10) as below:--

> "Right of private defence is valuable right and it is basically preventive in nature and not punitive. Sections 90 to 104, I.P.C. lay down the general principles governing the right of private defence. Section 96, I.P.C. lays down that nothing is an offence which is done in the exercise of the right of private defence and S. 97 proceeds to divide the right of private defence into two parts -- the first part relating to private defence of his own body, and the body of any other person, against any offence affecting him; and the second part deals with the property, whether movable or immovable, of himself or of any other person, against any act which is an offence falling under the definition of theft, robbery, mischief or criminal trespass or which is an attempt to

> commit theft robbery, mischief or criminal trespass. We are concerned with the private defence of property. Section 103, I.P.C. states that the right of private defence may even extend to causing death, but this right of private defence can be exercised only as against certain criminal acts which are enumerated in that section. The right of private defence of property would extend to causing death only in the case of robbery, house-breaking by night; mischief by fire committed on any building, tent or vessel, which building, tent or vessel is used as a human dwelling, or as place for the custody of property. It is further stated that in the case of theft, mischief or house-trespass these offences must have been committed under such circumstances as may reasonably cause apprehension that death or grievous hurt would be consequence. Though private defence is available in respect of criminal trespass or mischief as against the property owned by himself or of any other person, but criminal trespass is not enumerated as one of the offences under S. 103, I.P.C. Therefore, the right of private defence of property will not extend to the causing of death of the person who committed such acts, if the act of trespass is in respect of an open land. Only a house-trespass committed under such circumstances as may reasonably cause apprehension that death or grievous hurt would be the consequence is enumerated as one of the offences under S. 103."

28. Thus, assuming that Kodu Singh has constructed wall over said land, he was a trespasser and therefore, the right of private defence of property will not extend to him and other appellants.

29. The evidence on record is that Kodu Singh armed with Farsa, Ranjeet Singh armed with ballam (spear), Jagjeet Singh armed with Farsa, Bhabhuti Singh and Vijai Raj Singh armed with lathis emerged out from the house of Kodu Singh and came to the spot. The medical report shows that Chhitu Prasad deceased had sustained incised wounds, punctured wounds and contusions. Meaning thereby injuries on his person were caused by sharp edged weapons, pointed object weapons and blunt object i.e. Farsa, Ballam and lathis. As mentioned above, appellant Kodu Singh and his sons have admitted that the injuries on the person of deceased were caused. The appellants have also not challenged the evidence of prosecution witnesses regarding possession of Farsa, ballam, lathis by those five appellants. Arrival of above accused persons with deadly weapons on the spot indicated their common object and intention and there was also premeditation on the part of those 5 appellants and that they had intention of committing more harm than that was necessary for the purpose of self-defence. In this connection, the following observations of the Apex Court in Jassa Singh case (AIR 2002 SC 520) (supra) is relevant (Para 14).

> "In the instant case, the appellants went to the place of occurrence with guns and deadly weapons, this could clearly indicate that there was premeditation on the part of appellants and from the acts committed by the appellant, it Is evident that they had intention of committing more harm than was necessary for the purpose of self-defence. Therefore, the acts committed by the appellants will not come within the Exception 2 of Section 300, I.P.C, so as to make it culpable homicide not amounting to murder."

30. As mentioned above, Chhitu Prasad had obtained a decree of permanent injunction in respect of the land in dispute against Kodu Singh and others and at the time of occurrence he had gone to the spot to demolish the wall which was unauthorizedly raised over his land. It has also been admitted by Kodu Singh that Dev Narain (P.W. 1) was demolishing wall with Fawada. However, he contended that Chhitu Prasad was standing with his licensed gun. Thus, Chhitu Prasad had gone to the spot to exercise his lawful act as decree of Civil Court in his favour was evident to show that he had rightful claim over the land in dispute. The Apex Court held in the case of State of Rajasthan v. Ram Bharosi, AIR 1998 SC 3016 : (1998 Cri LJ 4053), as under (Paras 10 and 11):--

> 'Though there would be right of private defence under S. 97, I.P.C. when offence of criminal trespass or attempting criminal trespass is committed, under S, 103, I.P.C. it is only in the case of house trespass that right of private defence can extend to causng death. That is not the case here. On the assumption that it was the accused party which was in possession of the land, the complainant party could not have said to have committed or attempted to have committed offence of criminal trespass. Both Shiv Ram and Vijay Kumar were unarmed. High Court has not reached any finding on the assumption, which we are drawing, if the complainant party could be said to have committed or even attempted to have committed criminal trespass.....
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> There is nothing to show that Shiv Ram and Vijay Kumar entered upon the land in question with the intent to commit an offence or to intimidate, insult or annoy the accused party."

31. The definition of "criminal trespass" as contained in Section 441, I.P.C. presupposes intention to commit an offence or to intimidate, insult or annoy any person in possession of such property. If the intention to commit an offence or to intimidate, insult or annoy any person is not there, the complainant side cannot be said to have committed criminal trespass and therefore, the appellants side was not entitled to exercise right of private defence of property.

32. No doubt Kodu Singh appellant and his sons Jagjeet Singh Ranjeet Singh and Bhabhuti Singh have contended that when they objected Dev Narain (P.W. 1) from demolishing the wall, Chhitu Prasad fired on Kodu Singh with his licensed gun, but Kodu Singh escaped injury by leaning down. But this contention is not supported by evidence on record, as no injury or even a scratch was sustained by any of the accused persons. Contrary to it, the evidence on record is that Chhitu Prasad had kept his gun on the spot and was busy in demolishing the wall with Fawada. On arrival of the 5 accused, Bhabhuti Singh took out the gun of Chhitu Prasad deceased. In case gun was in the hands of Chhitu Prasad deceased and shot fired upon Kodu Singh had missed the aim and if the above 5 accused started attacking on him with Farsa, Ballam and lathis, he must have tried to save him even with the but of the gun and in such circumstances, some sort of injury, even superficial, must have been sustained by any of the above accused person. The absence of injury on any of the 5 accused persons supports the case of the prosecution that gun of Chhitu Prasad was lying on the ground and he could get no occasion to use the same. This circumstance of the case further indicates that Kodu Singh and other accused had even no apprehension of any sort of death or grievous hurt on any of the 5 accused and therefore, they got no right of private defence of person.

33, Now we have to consider whether the 5 accused namely Kodu Singh, Ranjeet Singh, Jagjeet Singh, Bhabhuti Singh and Vijai Raj Singh who armed with Farsa, Ballam and lathis simultaneously emerged out from the house of Kodu Singh and came to the spot were members of unlawful assembly the common object of which was to commit murder of Chhitu Prasad. As mentioned above, Ranjeet Singh, Jagjeet Singh, Bhabhutt Singh were sons of Kodu Singh and Vijai Raj Singh also belonged to their families. On coming to know that Chhitu Prasad and Dev Narain (P.W. 1) were on the spot and were demolishing the wall, they simultaneously emerged out armed with deadly weapons. This itself suggests that there was premeditation on the part of above accused persons and from the acts committed by them, it is evident that they had intention of committing more harm than was necessary for purpose of self-defence and therefore their common object was to commit murder of the deceased and not simply causing grievous hurt, as the injuries on the person of Chhitu Prasad deceased were caused on vital parts and those injuries were sufficient in ordinary course of nature to cause his death. It may be said that the other accused Chhatra Pal Singh, Raghuraj Singh, Maidan Singh, Turti Singh @ Narvada Singh and Genda Singh, who came to the spot subsequently while Chhitu Prasad was running to save his life and other 5 appellants were chasing him, had no common object to commit murder of the deceased, but this argument cannot be extended in case of Kodu Singh, Jagjeet Singh, Ranjeet Singh, Bhabhuti Singh and Vijai Raj Singh. Since those accused persons were not convicted under Sections 302 read with 149, I.P.C, and the State has not filed any appeal, we would not enter into the controversy regarding above accused, who came to the spot subsequently. But on account of it, it cannot be said that Kodu Singh, Ranjeet Singh Jagjeet Singh, Bhabhuti Singh and Vijai Raj Singh were not members of unlawful assembly, the common object of which was not to commit murder of Chhitu Prasad deceased. It is true that the trial Court had not convicted Bhabhuti Singh and Vijai Raj Singh under Sections 302 read with 149, I.P.C. on the assumption that the common object of unlawful assembly of which they were members was not to commit murder of Chhitu Prasad, but to cause only grievous hurt, but the acquittal of Bhabhuti Singh and Vijai Raj Singh under Section 302/149, I.P.C. will not affect the conviction of Ranjeet Singh under Sections 302 read with 149, I.P.C. as the finding of the trial Court regarding Bhabhuti Singh and Vijai Raj Singh is apparently erroneous, and on this ground, conviction of Ranjeet Singh under Section 302/149, I.P.C. cannot be interfered with.

34. In view of our above discussions and observations we find that appellant Ranjeet Singh was rightly convicted under Sections 148 and 302 read with 149, I.P.C.

35. So far the appeal preferred by Bhabhuti Singh, Vijai Raj Singh, Maidan Singh and Turi Singh @ Narvada Singh, is concerned, their participation as members of unlawful assembly cannot be doubted, as it has been fully established by eye-witness account of Dev Narain (P.W. 1) Brij Kishore (P.W. 2) and Nand Lal (P.W. 3). Deo Narain is an injured witness and his presence on the spot is admitted to the appellants. Brij Kishore (P.W. 2) was at his house and hearing the shrieks he reached the spot and saw the occurrence. Nand Lal (P.W, 3) was returning his house from village Grubrol and reached at the back side of house of Dashrath Gaderia and saw the occurrence. Their presence on the spot, is thus natural and probable. There is nothing in their cross-examination to discredit their testimony. Their evidence is corroborated by medical evidence. F.I.R. which was promptly lodged and other circumstances of the case.

36. It is true that Dev Narain (P.W. 1) is the son of Chhitu Prasad deceased, Brij Kishore (P.W. 2) is the real brother of Chhitu Prasad deceased and Nand Lal (P.W. 3) is also real brother of Chhitu Prasad deceased and they are relatives and interested witnesses, but relationship is not a factor to affect credibility of a witness, as it Is more often than not that a relation would not conceal actual culprit and make allegations against an innocent person. Foundation has to be laid if plea of false implication is made, in such cases, the Court has to adopt a careful approach and analyse the evidence to find out whether it is cogent and credible. Thus, the witness being a close relative and consequently being a partisan witness, should not be relied upon, has no substance (vide Gangadhar Behera v. State of Orissa, 2002 AIR SCW 4271 : (2003 Cri LJ 41 : AIR 2002 SC 3633). It was also observed by the Apex Court in the case of Dhalip Singh v. The State of Punjab, AIR 1953 SC 364 : (1953 Cri LJ 1465) that a witness is normally to be considered independent unless he or she springs from sources which are likely to be tainted and that usually means unless the witness has cause such as enmity against the accused, to wish to implicate him falsely. Ordinarily a close relation would be the last to screen the real culprit and falsely implicate an innocent person. It is true that when feelings run high and there is personal cause for enmity, that there is a tendency to drag in an innocent person against whom a witness has a grudge along with the guilty, but foundation must be laid for such a criticism and the mere fact of relationship for form being a foundation is often a sure guarantee of truth.

37. In the above case surprise was expressed over the impression, which prevailed in the mind of Members of Bar that relatives were not Independent witnesses. It is clear from the evidence of above ocular witnesses that the foundation with the above witnesses had motive to falsely implicate the appellants has not been established in this case. Therefore, their testimony regarding participation of the other accused cannot be discarded simply because they are close relatives of the deceased.

38. Undisputedly, injuries on the person of Chhitu Prasad deceased were grievous and therefore, the conviction of appellants Bhabhuti Singh, Vijai Raj Singh, Maidan Singh, Turti Singh @ Narvada Singh under Sections 147, 325/149, I.P.C. can also not be interfered with.

39. In view of what has been discussed above, we find no force in the appeal.

40. Accordingly, the appeal preferred by Kodu Singh, Jagjeet Singh, Chandra Pal Singh, Raghuraj Singh and Genda Singh stood abated on account of their death. The appeal preferred by Ranjeet Singh, Bhabhuti Singh, Vijai Raj Singh, Maidan Singh and , Turti Singh @ Narvada Singh is dismissed.

41. The conviction and sentences of appellant Ranjeet Singh under Sections 148 and 302 read with 149, I.P.C. and that of appellants Bhabhuti Singh, Vijai Raj Singh, Maidan Singh and, Turti Singh @ Narvada Singh under Sections 147 and 325 read with 149, I.P.C. awarded by trial Court are confirmed. These appellants are on bail. They shall surrender before the C.J.M. concerned to serve out the sentence. The C.J.M. Banda is directed to issue non-bailable warrant against the above appellants and procure their arrest and send them to jail by adopting all processes available under law and submit compliance report to this Court within a month.

Let a copy of this order be sent to C.J.M. Banda within a week.